



PLANNING &
DEVELOPMENT
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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-26-176 / Orchard Hills – Future Land Use Map Amendment, Overruling of Planning Commission Action
Date: September 14, 2026

Background:

The item for consideration is a Resolution overruling a Planning Commission denial of a proposed Future Land Use Map Amendment (or Master Plan Amendment). This is needed to fulfil Wyoming State Statute 15-1-506 and allow the Future Land Use Map Amendment to be considered by the Governing Body.

The Planning Commission heard a future land use map amendment at their September 8, 2026, meeting and unanimously voted 6-0 to deny the amendment. Wyoming State Statute requires a majority of the Commission to vote in favor which would require four members to have voted 'yes' on a motion to approve. Wyoming State Statute allows the Governing Body to overrule the Planning Commission and consider plans or plan amendments the Planning Commission disapproves.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral September 14, 2026
- Public Services Committee September 21, 2026
- Final Consideration September 28, 2026

Attachments:

1. Resolution

RESOLUTION NO. _____

**ENTITLED: " A RESOLUTION OVERRULING THE PLANNING COMMISSION'S
DENIAL OF PUDC-26-176, A FUTURE LAND USE MAP AMENDMENT
FROM MIXED-USE RESIDENTIAL TO MIXED-USE EMPLOYMENT."**

WHEREAS, an amendment to the Future Land Use Map of PlanCheyenne, PUDC-26-176, has been proposed to change the land use designation from Mixed-Use Residential to Mixed-Use Employment for property generally located west of South Greeley Highway, south of West College Drive, and southwest of and adjacent to the intersection of Apple Street and York Avenue;

WHEREAS, on September 8, 2026, the City of Cheyenne Planning Commission considered PUDC-26-176 and voted unanimously, 6-0, to deny the proposed Future Land Use Map amendment; and

WHEREAS, pursuant to Wyo. Stat. § 15-1-506, the Governing Body has the authority to overrule the Planning Commission's disapproval.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that, pursuant to Wyo. Stat. § 15-1-506, the Governing Body hereby overrules the Planning Commission's denial of PUDC-26-176 and authorizes the proposed amendment to the Future Land Use Map of PlanCheyenne to proceed to final consideration by the Governing Body.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2026.

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK